

Tentative Rulings
June 12, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

8. *Austin v. Buchelle, et al*, Case No. CIVSB2426609
Plaintiff's Motion for Leave to File an Amended Answer
6/12/26, 9:00 a.m., Dept. S-17

This matter was continued from April 22, 2026, for supplemental declaration

The Court would **DENY**.

Procedurally, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Rules of Court, rule 3.1324(a).) Additionally, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rules of Court, rule 3.1324(b).)

First, the Court will hear argument on whether a lone-filed "amended answer" – filed February 10, 2026 – is intended to satisfy the requirement to provide a copy of the proposed First Amended Complaint. Second, the supplemental declaration now simply says that the amendment is necessary because Plaintiff did not do a public records search until April of 2026. This does not apprise the Court as to why the issues should not have reasonably been known prior to this act, given the real property nature of the case. Further, there is no discussion of why the new causes (which raise the number of causes from two to six) should relate back to the original filing, as opposed to being their own separate action (presuming they are not subject to a statute of limitations).

In this case, none of the supporting documents affirm a true proposed amendment. The submitted supplemental declaration is still vague as to proposed changes, and it fails to set forth any facts asserting that the proposed changes are necessary and proper or why the request was not made sooner.
